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2:00 PM **LINE 1**

**23-CIV-01468**

LUIS URQUILLA VS JOSHUA'S MOVING PACKING SERVICES, LLC

LUIS ALEXANDER URQUILLA  
JOSHUA'S MOVING PACKING SERVICES, LLC

KEVIN MAHONEY  
CHRISTOPHER J. OLSON

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PLAINTIFFS' MOTION FOR PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT

**TENTATIVE RULING:**

Plaintiffs Luis Alexander Urquilla and Melkin A. Menjivar's Motion for Approval of Class Action and PAGA Settlement is **DENIED without prejudice.**

On January 7, 2026, the court denied the parties' motion for preliminary approval of this class action settlement for failure to resubmit a renewed motion that addressed issues previously identified by the court. On July 29, 2026, the court denied the parties' stipulation to continue the deadline to file the amended motion for preliminary approval.

This is the second time the parties have submitted a motion for preliminary approval, and the third time the parties have come before this court attempting to obtain approval of settlement. The parties have again failed to address the deficiencies identified by the court which precluded approval of the settlement, and new issues have arisen.

The Second Amended Settlement Agreement, attached to plaintiffs' counsel Kevin Mahoney's declaration, is unsigned. Mr. Mahoney's declaration is also unsigned. The parties and Mr. Mahoney shall correct these issues.

In its January 7, 2026 order the court noted that the Net Settlement Amount (NSA) was again inconsistently reported. The parties have failed to remedy this issue. The motion and proposed notice report the NSA as \$24,334, while Mr. Mahoney's declaration states that the "net fund" will be \$32,099.33. The parties must clarify the NSA.

Relatedly, the parties have inconsistently reported the average individual settlement payments. Taylor Mitzner of settlement administrator Phoenix Settlement Administrators (Phoenix) states in her declaration that the average individual settlement share will be \$715.71, while Mr. Mahoney reports it as \$867.55.

The papers also inconsistently represent the class size: Ms. Mitzner bases her calculations on a class size of 34, but the motion and Mr. Mahoney's declaration state that it is 37.

The settlement administrator payment is reported as four different amounts in four different documents. The motion states that it is \$10,000, the settlement agreement states that it is \$5,000, the proposed notice states that it is \$6,000, and the declaration of Michael Moore on behalf of

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Phoenix attached to Mr. Mahoney's declaration as Exhibit F states that it is \$6,500. The parties shall clarify this.

The court's January 7, 2026 Order pointed out a number of issues with plaintiffs' declarations and directed plaintiffs to address these issues in updated declarations in support of the motion. Plaintiffs have failed to file declarations in support of this motion.

The prospective class representative must file a declaration stating that the person desires to represent the class and understands the fiduciary obligations of serving as class representative. Counsel's declaration to that effect will not suffice. [*Jones v. Farmers Ins. Exchange* (2013) 221 CA4th 986, 998, 164 CR3d 633, 643; *Imperial County Sheriff's Ass'n v. County of Imperial* (2023) 87 CA5th 898, 919-920, 303 CR3d 875, 894-895—Ps failed to meet burden to show they were adequate representatives of class where they failed to file declarations to that effect, but failure did not justify denial of class certification motion, and trial court should have allowed Ps an opportunity to submit supporting declarations from proposed class representatives].

(Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (Rutter, June 2026 Update) ¶ 14:26.) Plaintiffs must file declarations. The court also notes that in the motion, plaintiffs cite caselaw regarding "settlement allocation" issues that have no bearing here and do not support a finding that plaintiffs are adequate representatives.

In the proposed notice, in the section titled "Fee and Expense Award to Class Counsel," the parties failed to insert the amount of their requested fees. The section titled "You can object to the Settlement" has the wrong department number and address for this Court. It should be corrected to Department 28, which is located at 800 North Humboldt Street, San Mateo, California 94401. In the section titled "When is the next Court hearing," the parties shall correct "Nealy" to "Healy." In the section titled "What if I need more information?," it states that the settlement is attached "to the Declaration of Kevin Mahoney and Berkeh Alemzadeh," but the settlement is attached only to the Mahoney Declaration. The parties shall correct these errors.

Lastly, the settlement agreement states that money from uncashed checks will be sent to Legal Aid at Work. The parties must request the court's approval of this *cy pres* recipient and confirm that they have no conflicts of interest with the recipient. (Code Civ. Proc, § 384, subd. (b).)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiffs' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

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2:00 PM **LINE 2**

23-CIV-03441

TREVOR ZLATUNICH VS PRIME COMMUNICATIONS, L.P.

TREVOR ZLATUNICH  
PRIME COMMUNICATIONS, L.P.

DANIEL BROME  
JANINE M. BRAXTON

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PLAINTIFF'S MOTION FOR APPROVAL OF PAGA SETTLEMENT AND AWARD OF ATTORNEYS' FEES AND COSTS AND SETTLEMENT ADMINISTRATION COSTS

**TENTATIVE RULING:**

Plaintiff Christopher Gonzales's motion for approval of PAGA settlement is **DENIED without prejudice**.

The proposed settlement amount is \$439,500.00. The settlement will provide a payment of \$205,631.50 to the California Labor and Workforce Development Agency (i.e., 75% of the \$274,175.33 Net Settlement Amount). The remaining \$68,543.83 will be distributed amongst the aggrieved employees.

In ruling on PAGA settlements, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76 77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 66 ["trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws."]); *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 ["The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement."]; *In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.)

The court has identified several issues that preclude it from granting the motion at this time. The parties must provide the requested information in an amended motion for approval.

Plaintiff shall clarify the number of class members. According to the motion, it is estimated that there are approximately 2,375 aggrieved employees, but the Settlement reports this as 2,435 aggrieved employees. (MPA, at p. 5:8; Settlement, ¶ 3(a)(6).)

The court requests additional information about how the settlement amount was reached. Plaintiff's counsel provides estimated damages for one cause of action: failure to pay wages. However, plaintiff's PAGA action is based on eight other underlying claims, and plaintiff's counsel fails to estimate damages for any of those claims. Additionally, while plaintiff's counsel generally discusses defendant's defenses, he does not explain what specific discounts were made based on which defenses and risks. The court is therefore unable to determine whether the settlement is a reasonable compromise of the claims. This is particularly important where the parties did not use the assistance of a mediator.